

action under Part 2 (commencing with Section 307).”] (in pertinent part); see also *id.* at § 1088.5 (“In a trial court, if no alternative writ is sought, proof of service of a copy of the petition need not accompany the application for a writ at the time of filing, but proof of service of a copy of the filed petition must be lodged with the court prior to a hearing or any action by the court.”).

No proof of service has been filed, as noted above. Accordingly, the Court cannot take any action to adjudicate the Petition.

Disposition

The Court finds and orders as follows:

1. **PLAINTIFF TO APPEAR** to address service of the pending Petition.

Discovery Law & Motion

19. 9:01 AM CASE NUMBER: C25-00242
CASE NAME: ALLIED WORLD SURPLUS LINES INSURANCE COMPANY VS. WILLIAM JOHNSON
***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF ALLIED WORLD SURPLUS LINES**
INSURANCE COMPANY'S FURTHER RESPONSES TO REQUESTS FOR PRODUCTION, SET ONE
FILED BY: ATHENS INSURANCE SERVICE, INC.
TENTATIVE RULING:

On March 17, 2026, defendant and cross-complainant Athens Program Insurance Services, LLC (“Athens”) filed a motion to compel (the “Motion to Compel Further Responses”) responses to discovery served upon plaintiff Allied World Surplus Lines Insurance Company (“Allied”). The motion also seeks an order deeming the truth of the matters specified in requests for admissions served. The Motion to Compel Further Responses was set for hearing on September 14, 2026. The motion is opposed.

A joinder in the Motion to Compel Further Responses (the “Joinder”) was filed on April 16, 2026 by defendants, cross-complainants and cross-defendants Tyson & Mendes LLP, William Johnson, Robert Tyson, Patrick Mendes, Cayce Lynch, and Matthew Izu (the “T&M Defendants”).

Background

Athens served Allied with certain discovery requests on April 4, 2025, a first set of requests for production of documents consisting of four separate document production demands (the “Discovery Requests”). See Declaration of Michael T. Lee filed March 17, 2026 as part of the Motion to Compel (“Supporting Declaration”) ¶13 and **Exhibit 1** thereto. Several privileged logs were attached to the Supporting Declaration. *Id.* at **Exhibits 2 and 3**.

Notably, no copies of any written responses to the subject Discovery Requests were filed with the moving papers. See Motion to Compel Further Responses, including attached Supporting Declaration. Also important was the absence of any supporting Separate Statement at the time the Motion to Compel Further Responses was filed.

The moving party did not file a Separate Statement until June 30, 2026.

Opposition papers were filed on August 31, 2026.

A Reply was filed on September 4, 2026. This Reply included a declaration by the moving party's attorney (the "Reply Declaration") which included belated assertions of material information regarding the matter and proffered multiple new exhibits, and totaled 64 pages.

Analysis

The Motion to Compel Further Responses is procedurally defective.

1. Athens Failed To Timely File A Separate Statement In Support Of The Motion To Compel.

Any motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement, including a motion to compel further responses to a demand for inspection of documents. Rule 3.1345(a)(1)-(3); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025) ("Rutter Civ. Pro.") § 8:602.5.

There are very specific requirements applicable to a Separate Statement. See CRC 3.1345(c) ("A separate statement is a separate document filed and served **with the discovery motion** that provides all the information necessary to understand each discovery request and all the responses to it that are at issue. The separate statement must be full and complete so that no person is required to review any other document in order to determine the full request and the full response.") (emphasis added). Among other things, a proper Separate Statement must set forth the full text of both the request and response. *Id.* at (c)(1)-(2).

No Separate Statement in compliance with the requirements of CRC 3.1345 was filed by the moving with the moving papers.

For this reason alone, the motion is procedurally defective.

Even if the Court had discretion to consider the late filed Separate Statement on June 30, 2026 in support of the motion, the Court would decline to do so. The failure to timely file a Separate Statement was compounded by the failure to even proffer copies of the responses to the subject Discovery Requests with the moving papers.

Perhaps more importantly, the Separate Statement, when finally filed, materially expanded the scope of the relief sought. The moving party's Notice of Motion set forth the particular grounds for the motion:

The motion is made on the grounds that Allied has withheld or over-redacted documents, particularly internal communications among Allied personnel during the critical period after Tyson & Mendes was removed and Allied took over direct handling of the underlying Andreeva wrongful death action through the \$11 million settlement.

See Notice of Motion filed March 17, 2026 as part of the Motion to Compel Further Responses.

This notice says nothing about improper objections being made to the Subject Discovery. Yet, the belatedly filed Separate Statement contains contentions to the effect that Allied's stated objections lack merit. See e.g. Separate Statement, pp. 8 and 14.

2. Athens Failed To Proffer A Timely Declaration Regarding Meet And Confer Efforts.

A motion to compel further responses to a demand for inspection must be accompanied by a meet and confer declaration. Code Civ. Proc. § 2031.310(b)(2) ("The motion **shall be accompanied** by a meet and confer declaration under Section 2016.040.") (emphasis added); see also Code Civ. Proc. § 2016.040 ("A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith

attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.”).

The Supporting Declaration said **nothing** about any meet and confer efforts. See Supporting Declaration, ¶¶2-5.

For this reason alone, the motion is also procedurally defective. See *Golf & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127, 138, fn. 9.

Even if the Court had discretion to consider the late filed Reply Declaration as satisfying the statutory requirements of Sections 2031.310(b)(2) and 2016.040, the Court would decline to do so.

This is not a case of supplying more information about the meet and confer process to address the other side’s arguments about whether that process was adequate. The moving Supporting Declaration did not proffer **anything** about any meet and confer process. Adducing the required information about the meet and confer efforts for the first time at the very end of the process frustrates the opposing party’s ability to respond to the factual showing required to be made in support of this kind of motion. The Court will not countenance such sandbagging.

Sanctions

The moving party persisted in prosecuting the Motion to Compel Further Responses without substantial justification based upon procedurally defective moving papers.

The Court finds that the moving party’s conduct constituted making a motion to compel discovery unsuccessfully and without substantial justification, pursuant to Code of Civil Procedure section 2023.010(h).

The Court finds that the foregoing conduct by the moving party constituted conduct that was a misuse of the discovery process within the meaning of Code of Civil Procedure section 2023.030 and that such conduct warrants the imposition of monetary sanctions.

In unsuccessfully making this motion, the Court finds that the moving party did not act with substantial justification. Nor does the Court find any other circumstances make the imposition of monetary sanctions unjust.

Athens shall pay monetary sanctions to Allied in the amount of **\$3,000.00** (the “Monetary Sanctions”). The Court finds that the Monetary Sanctions are reasonable expenses, including attorneys’ fees, incurred by Allied as a result of the foregoing conduct by Athens. In fixing said amount, the Court has considered all evidence in the record before the Court, including, but not limited to, the Declaration of Teri Mae Rutledge filed August 31, 2026. The Court also mitigated the amount of the award in the exercise of its discretion and in light of the totality of the circumstances bearing on this matter.

Disposition

The Court finds and orders as follows:

1. The Motion to Compel Further Responses is **DENIED**. The Joinder is **DENIED**.
2. The Monetary Sanctions shall be paid by Athens to Allied **within thirty (30) calendar days** of notice of entry of this order.
3. The Court shall issue the order after hearing.

20. 9:01 AM CASE NUMBER: C25-00242
CASE NAME: ALLIED WORLD SURPLUS LINES INSURANCE COMPANY VS. WILLIAM JOHNSON
*HEARING ON MOTION FOR DISCOVERY JOINDER TO MOTION TO COMPEL FURTHER RESPONSES
TO TO REQUEST FOR PROD
FILED BY: TYSON & MENDES LLP
TENTATIVE RULING:

See LINE 19, above.

21. 9:01 AM CASE NUMBER: C25-00575
CASE NAME: JANE DOE N.M. VS. DOES 1 THROUGH 100, INCLUSIVE
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUEST FOR PROD OF
DOCS OF RECORDS
FILED BY:
TENTATIVE RULING:

Pursuant to the order made at the Case Management Conference (CMC) on September 10, 2026, the hearing date is **CONTINUED** to **October 5, 2026, 9:00 a.m.**, in **Department 34**. The parties to notify the Court as soon as a final resolution has been reached.

22. 9:01 AM CASE NUMBER: C25-01397
CASE NAME: ROBERT RODRIGUEZ VS. SIMONA ZAKHEIM
*HEARING ON MOTION FOR DISCOVERY COMPEL RESPONSES TO SPECIAL INTERROGATORIES, SET TWO
FILED BY: RODRIGUEZ, ROBERT D.
TENTATIVE RULING:

Plaintiff Robert D. Rodriguez ("Plaintiff") filed, on March 12, 2026, a motion to compel (the "Motion to Compel") responses by defendants Simona Yana S. Zakheim ("Ms. Zakheim") and Hyden Zakheim, LLP (the "Law Firm") (collectively, the "Zakheim Defendants") to Plaintiff's **Special Interrogatories, Set Two** (the "SROGs, Set Two"). The Motion to Compel was set for hearing on September 14, 2026. No opposition has been filed to date.

Background

It appears that the notice of motion contained an error. The caption page of the Motion to Compel, which includes the notice of motion, referenced an erroneous case number. The caption referred to case number "C23-02654." That case was dismissed or about April 8, 2025.

The case number for the pending action is C25-01397. In the exercise of its discretion and to ensure proper notice, the Court continues this matter to a new hearing date and will issue an order giving notice to all parties.

In addition, this is one of several pending discovery motions. The next group of discovery motions have hearing dates on November 2, 2026. Those motions (collectively, the "Defendant Masoudi Discovery Motions") are as follows: